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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

BACKGRID USA INC., a California corporation,
Plaintiff,
v.
KATHERYN HUDSON p/k/a KATY PERRY; and DOES 1-10, inclusive,
Defendant.

Case No. 2:19-cv-09309-AB-MRWx

DEFENDANT'S NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S COMPLAINT PURSUANT TO F.R.C.P. 12(b)(6), AND, IN THE ALTERNATIVE, FOR AN INQUIRY TO THE REGISTER OF COPYRIGHTS PURSUANT TO 17 U.S.C. § 411(b)(2); MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF

Date: March 6, 2019
Time: 10:00 a.m.
Courtroom: 7B
Judge: Honorable André Birotte Jr.

TO PLAINTIFF AND ITS ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that, on March 6, 2019 at 10:00 a.m., or as soon thereafter as the matter may be heard, in Courtroom 7B of the above-entitled Court, located at 350 West First Street, Los Angeles, California 90012, Defendant Katheryn Hudson p/k/a Katy Perry ("Defendant") will, and hereby does, move the Court for an order dismissing the Complaint filed herein by Plaintiff BackGrid USA Inc. ("Plaintiff") pursuant to Federal Rule of Civil Procedure 12(b)(6) and, in the alternative, for a Court inquiry to the Register of Copyrights pursuant to 17 U.S.C. 411(b)(2).

The Complaint fails to state a claim for which relief may be granted and should be dismissed in its entirety.

This Motion is made following the conference of counsel pursuant to L.R. 7-3 which took place on January 17, 2020 and in a subsequent exchange of written positions on the issues raised by the instant motion.

Dated: February 3, 2020

Respectfully submitted,

GREENBERG TRAURIG, LLP

By: /s/ Vincent H. Chieffo
Vincent H. Chieffo
Attorneys for Defendant Katheryn Hudson p/k/a Katy Perry

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I. INTRODUCTION

The Court should grant Defendant Katheryn Hudson's ("Defendant") Motion to Dismiss (the "Motion") because the Complaint (Dkt No. 1) ("Complaint") filed by Plaintiff BackGrid USA Inc. ("Plaintiff") fails based on its express allegations, materials subject to Judicial Notice, and applicable law. Plaintiff's claims are that: (i) Plaintiff owns a copyright to a snapshot (the Snapshot) of Defendant and her companion in character as Bill and Hillary Clinton, donning specialized and copyrightable makeup (including prosthetics), and her other companion dressed as a "Trump Troll" in a unique mask arriving at a 2016 Halloween party; and, (ii) Defendant infringed that copyright by reproducing it on an Instagram post with her comments giving credit to the makeup and costume designers that were the authors of the prior copyrightable works reproduced in the allegedly infringing Snapshot.

The complaint should be dismissed because it cannot allege a valid copyright in the Snapshot because the Snapshot is an unoriginal and unauthorized derivative work reproducing the copyrighted creative works of makeup, design, prosthetics, and mask. Plaintiff does not sufficiently allege standing under 17 U.S.C. § 501(b). Plaintiff only alleges that it acquired ownership of the purported copyright in the Snapshot, months or perhaps years after the alleged infringement accrued, but it does allege that it acquired the additional right to sue infringement accruing before it acquired ownership of the supposed copyright in the Snapshot.

Plaintiff also lacks standing under 17 U.S.C. § 411(a) because the copyright registration for the Snapshot Deposit Series is invalid pursuant to 17 U.S.C. § 411(b) as a result of it containing knowing inaccuracies that if known to the Register of Copyrights would have caused the registration to be refused.

Finally, even if Plaintiff does have standing and a valid copyright in the Snapshot, Defendant's inclusion of a cropped version of that Snapshot on her Instagram post with her comments giving credit and authorship attribution to the

artists who created the copyrighted works reproduced without permission in the Snapshot is a fair use of the snapshot and not an infringement.

The Court should grant the Motion and dismiss the Complaint for failure to state a claim without leave to amend or, in the alternative, to submit the inquiry to the Register of Copyrights required by 17 U.S.C. § 411(b)(2).

II. SUMMARY OF FACTS

A. Plaintiff's Allegedly Infringed Snapshot.

Defendant is a famous American singer, songwriter, actress, businesswoman, and entrepreneur. (Complaint, ¶ 5.). On October 28, 2016, Defendant and her companions arrived at actress Kate Hudson's annual Halloween party (the "Party"). (Complaint ¶ 8; RJN, Ex. 1). Defendant appeared at the Party in extensive and specialized creative makeup and prosthetics, wardrobe costumes, and masks so as to appear as Bill and Hillary Clinton, and a third individual in a unique mask that was created by combining elements of Donald Trump and a troll. (Complaint Exhibit B; RJN, Ex. 1). Indeed, Defendant's and her companions' actual appearances were so transformed before arriving at the Party that none of them can actually be identified in Plaintiff's allegedly infringed Snapshot.

Upon Defendant's arrival at the party, a paparazzi, Devone Byrd (the "Photographer") stood outside snapping in quick succession a series of snapshots of the trio. On their own initiative and at their own direction, Defendants and her companions posed upon arrival at the Party – pointing, waving, making a variety of facial expressions, and positioning themselves directly towards the Photographer. (See Defendant's Request for Judicial Notice ("RJN"), Ex. 1; Complaint Ex. B.).

This summary is based on the well plead factual allegations of the Complaint, the exhibits to the Complaint, and the documents incorporated into the complaint of which this Court may take judicial notice. See infra at § III A; Defendants' Request for Judicial Notice ("RJN"), Exhibits 1 – 3.

III. ARGUMENT

A. Motion to Dismiss Standard.

To survive a Rule 12(b)(6) motion to dismiss, a plaintiff must provide the "grounds" of its "entitle[ment] to relief [which] requires more than labels and conclusions, and a formulaic recitation of the elements of a cause of action will not do." *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 555 (2007). Additionally, "the tenet that a court must accept as true all of the allegations contained in a complaint is inapplicable to legal conclusions. Threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice . . . [W]here the well-pleaded facts do not permit the court to infer more than the mere possibility of misconduct, the complaint has alleged – but it has not 'show[n]' – 'that the pleader is entitled to relief.' Fed. Rule Civ. Proc. 8(a)(2)." *Ashcroft v. Iqbal*, 556 U.S. 662, 678-79 (2009).

Thus, when ruling on a Rule 12(b)(6) motion, "the court need not accept conclusory allegations of law or unwarranted inferences, and dismissal is required if the facts are insufficient to support a cognizable claim." *Perfect 10, Inc. v. Visa Int'l Serv. Ass'n*, 494 F.3d 788, 794 (9th Cir. 2007); see also *Twombly*, 550 U.S. at 555.

Further, while review on a motion to dismiss under Rule 12(b)(6) generally is confined to the allegations of the complaint, a court may consider documents attached to or incorporated by reference into a complaint where neither party disputes their authenticity. *United States v. Ritchie*, 342 F.3d 903, 907–08 (9th Cir. 2003); *Fanni v. Northrop Grumman Corp.*, No. CV 98-5197 DT AIJX, 2000 WL 35905106 at *6 (C.D. Cal. Apr. 10, 2000) ("Documents whose contents are alleged in a complaint and whose authenticity no party questions, but which are not physically attached to the pleading, may be considered in ruling on a Rule 12(b)(6) motion to dismiss.").

Accordingly, even if a document is not attached to a complaint, it may be incorporated by reference into a complaint if, as here, the plaintiff refers extensively

to the document or the document forms the basis of the plaintiff's claim. See *Van Buskirk v. Cable News Network, Inc.*, 284 F.3d 977, 980 (9th Cir. 2002) ("In this case, the district court relied on the doctrine of 'incorporation by reference' to consider documents that were referenced extensively in the complaint and were accepted by all parties as authentic.").

As explained below, based on these standards, Plaintiff's claims clearly fail. The Court therefore should grant the Motion in its entirety and dismiss the Complaint with prejudice.

IV. CONCLUSION

Based on Plaintiff's lack of standing and the fair use of Defendant's Instagram Credit Post, there is no reasonable possibility that Plaintiff could cure the defects in its Complaint. Under these circumstances, the Court has wide discretion to deny Plaintiff leave to amend. See *Cervantes v. Countrywide Home Loans, Inc.*, 656 F.3d 1034, 1041 (9th Cir. 2011) ("Although leave to amend should be given freely, a district court may dismiss without leave where a plaintiff's proposed amendments would fail to cure the pleading deficiencies and amendment would be futile."). Defendant asks the Court to grant the Motion without leave to amend and to dismiss this action.

Dated: February 3, 2020

Respectfully submitted,

GREENBERG TRAURIG, LLP

By: /s/ Vincent H. Chieffo
Vincent H. Chieffo
Attorneys for Defendant Katheryn Hudson p/k/a Katy Perry

CERTIFICATE OF COMPLIANCE

The undersigned, counsel of record for Defendant Katheryn Hudson p/k/a Katy Perry, certifies that this brief contains 1161 words, which complies with the word limit of L.R. 11-6.1.

Dated: February 3, 2020

Respectfully submitted,

GREENBERG TRAURIG, LLP

By: /s/ Vincent H. Chieffo
Vincent H. Chieffo
Attorneys for Defendant Katheryn Hudson p/k/a Katy Perry